

# Krishnasamy vs Kannika on 25 July, 2013

Author: K.Ravichandrababu

Bench: K.Ravichandrababu

## IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 25.07.2013

CORAM

THE HONOURABLE MR.JUSTICE K.RAVICHANDRABAABU

C.R.P. (NPD) No.2883 of 2008

Krishnasamy .. Petitioner

..vs..

Kannika .. Respondent

Prayer: Civil Revision Petition filed under Article section 25 of the Pondicherry Buildings (Lease and Rent Control) Act 1969 against the judgment and decree dated 14.11.2007 made in R.C.A.No.5/2007 on the file of the Court of the Appellate Authority under Rent Control Act (Principal District Judge) at Puducherry, reversing the order dated 27.10.2006 made in H.R.C.O.P.No.45/2003 on the file of the court of the Rent Controller, Puducherry.

For Petitioner : Mr.T.P.Manoharan

For Respondent : Mr.R.Subramanian

## ORDER

The revision petitioner is the landlord. The respondent is the tenant. The landlord is aggrieved against the judgment and decree made by the learned Rent Control Appellate Authority in dismissing his application for eviction sought on the ground of willful default.

2. The case of the landlord/petitioner is as follows:

The respondent's mother took the petition mentioned property on lease on 05.02.1982 for non residential purpose to run a book stall. Thereafter, with the consent of her mother, the respondent became the tenant under the petitioner on 05.01.1991 for running the said book stall on a monthly rent of Rs.1,500/-. The respondent paid a sum of Rs.4,500/- towards advance. Thereafter, another lease deed was executed on 05.06.1994 with a monthly rent of Rs.1,800/-. The respondent committed willful default in payment of rent from June 1994. The petitioner issued a notice on 26.12.1994 demanding payment of arrears of rent and delivery of possession. The respondent paid Rs.10,800/- being the rental arrears for six months through Banker's cheque along with a reply notice dated 02.01.1995. On 06.01.1995, further sum of Rs.1,800/- was paid through banker's cheque. Thus, the respondent paid the rental arrears from June 1994 to December 1994, which was received by the petitioner without prejudice to his right to file eviction petition. The petitioner filed H.R.C.O.P. No.25/1995, seeking for eviction of the respondent on the ground of willful default. He also filed H.R.C.O.P. Nos.19/1995 and 20/1995 on the ground of sub-lease and personal occupation respectively. All the three petitions were allowed on 14.11.1997 and the appeals preferred against the same by the tenant were dismissed on 25.01.1999. However, in C.R.P.Nos.952 to 954 of 1999, this Court by order dated 24.10.2002 allowed the civil revision petitions and set aside the order of eviction. Thereafter, the respondent had willfully defaulted to pay the monthly rent from February 2003 to July 2003 to the tune of Rs.10,800/-. After adjusting the excessive rental advance of Rs.4,200/-, the respondent was still in arrears to the tune of Rs.6,600/- upto the month of July 2003. Hence, the tenant is liable to be evicted on the ground of willful default.

3. The case of the respondent/tenant is as follows:

She denied the allegation of willful default in payment of monthly rent from February 2003 to July 2003. The tenant's husband suffered serious illness and thus, he had to take treatment for a long time. Therefore, she was forced to be away from Pondicherry very often to accompany her husband for taking treatment in Homeopathy and Siddha system. Consequently, they were prevented from attending to their business for a long time and paying the rents until August.